

Nirmala Devi v. State of U.P.

Allahabad High Court · Division Bench · 7 February 2020 · WRIT - C No. - 2372 of 2020 · **Writ disposed; relegated to Clause 6.5; recovery citation stayed eight weeks; no opinion on merits.**

HEADNOTE

A writ seeking certiorari to quash an electricity recovery citation and mandamus against coercive realisation is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory alternative. The consumer may approach the concerned authority within three weeks for a decision in accordance with law within four weeks; the citation remains in abeyance for eight weeks. The Court expressed no opinion on merits.

FACTUAL SUMMARY

Nirmala Devi filed a writ at Allahabad challenging a recovery citation dated 30 November 2019 issued by the Tehsildar, Tehsil Sirathu, District Kaushambi, seeking to quash it and to restrain coercive realisation of the amount shown. Counsel for the Electricity Department submitted that she had an alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Petitioner's counsel did not rebut that contention. The Division Bench disposed of the petition on that footing, with a short stay of the citation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternate-remedy

HOLDING

Where a consumer challenges an electricity recovery citation by writ, and the licensee points to Clause 6.5 of the U.P. Electricity Supply Code, 2005 as the statutory forum, the High Court will not entertain the petition if that contention is unrebutted. The consumer may approach the concerned authority within a short time, to be decided in accordance with law; the citation may be kept in abeyance meanwhile. The Court expresses no opinion on merits. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy Writ against a Tehsildar recovery citation for electricity dues was not entertained because Clause 6.5 was available; petitioner relegated to that authority with an eight-week stay of the citation. ¶ 1

clause-6.5-statutory-remedy The Court treated Clause 6.5 of the 2005 Code as the statutory remedy for ventilating the grievance behind the recovery citation and declined the writ on that ground. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION AND THE UNDERLYING ELECTRICITY DUES

Court expressly declined to express any opinion on merits; the concerned authority is to consider the matter on its own merits. ¶ 1